

DISTRICT COURT, PUEBLO COUNTY, STATE OF COLORADO 501 N. Elizabeth St. Pueblo, CO 81003	DATE FILED: February 12, 2020 9:47 AM FILING ID: 633D1D071AB7B CASE NUMBER: 2020CV30078
Plaintiff: MONICA ACOSTA v. Defendant: PUEBLO SCHOOL DISTRICT NO. 60	▲ COURT USE ONLY ▲
Attorney for Plaintiff: Erik G. Bradberry, #49894 Colorado Education Association 1500 Grant Street Denver, Colorado 80203 Phone: (303) 837-1500 Fax: (303) 861-2039 email: ebadberry@coloradoea.org	Case Number: Division:
COMPLAINT AND JURY DEMAND	

The Plaintiff, Monica Acosta, by and through her attorney, Erik G. Bradberry of the Colorado Education Association, hereby files this Complaint and Jury Demand against the Defendant, Pueblo School District No. 60 (“School District”), and states the following in support thereof:

INTRODUCTION AND SUMMARY

In May 2018, Monica Acosta participated as a vocal leader in a week-long teacher strike that caused the School District to temporarily close its schools and suspend all meaningful operations. When the strike ended, teachers, including Acosta, returned to work under a contractual guarantee that the School District would not engage in, nor tolerate, any form of reprisal against those who participated in or otherwise supported the strike. Days after she returned to work, Acosta’s supervisor selected her for “nonrenewal,” effectively terminating her employment. In terminating Acosta’s employment, the School District violated her rights under the collective bargaining agreement entered into by and between the Pueblo Education Association (“PEA”) and the School District. The School District also violated Acosta’s rights guaranteed by the First Amendment of the United States Constitution and Article II, Section 10 of the Colorado Constitution.

JURISDICTION AND VENUE

1. The District Court of the County of Pueblo, State of Colorado, has jurisdiction of this action pursuant to Article VI, Section 9, of the Colorado Constitution.
2. Venue is proper in this District pursuant to Rule 98 of the Colorado Rules of Civil Procedure.

PARTIES

3. The Plaintiff, Acosta, is an experienced educator who spent two school years, 2016-17 and 2017-18 teaching 3rd grade at Beulah Heights Elementary (“Beulah Heights”), one of the School District’s elementary schools. Ms. Acosta resides in the City of Colorado Springs, County of El Paso, State of Colorado.
4. The Defendant School District is a Colorado public school district duly constituted and existing pursuant to applicable Colorado laws. The offices of the Defendant School District are located in the City and County of Pueblo, State of Colorado.

FACTUAL ALLEGATIONS

5. PEA and the School District’s Board of Education (“Board”) are parties to a collective bargaining agreement (“CBA”).
6. Among other provisions, the CBA provides—and has long provided—that the School District recognizes PEA as the sole and exclusive bargaining representatives of teachers employed by the School District. Teachers employed by the School District are third-party beneficiaries of the CBA between PEA and the Board.
7. PEA has been the teachers’ bargaining representative since approximately the 1960s. Until May 2018, however, the School District’s teachers had never gone on strike.
8. When Acosta was hired by the School District, in August 2016, the then-existing CBA was due to expire on August 31, 2017.
9. Representatives of PEA and the School District were unable to come to terms on a successor agreement and the CBA expired by its own terms, but not before PEA declared the existence of a bargaining impasse.
10. In November 2017, PEA and the School District participated in mediation in an effort to resolve the impasse; however, mediation did not bring about a settlement.
11. In February 2018, pursuant to the impasse-resolution provisions contained in the CBA, PEA and the School District engaged the help of a fact finder. The fact finder held a

hearing where he heard testimony and received documents related to each side's bargaining position.

12. After the hearing, the fact finder issued a recommendation to PEA and the Board that aligned substantially with PEA's bargaining position.

13. Prior to the February 2018 fact finding, Acosta, still relatively new to the School District, had limited awareness of the labor dispute between PEA and the School District.

14. As the dispute dragged on, however, Acosta became increasingly interested and started gathering information. She began by reading local press coverage detailing the fact finder's recommendation, and later contacted PEA to find out how she could learn more.

15. From there, Acosta began attending PEA meetings where she learned, *inter alia*, about the possibility of a teacher strike if the School Board declined to accept the fact finder's recommendation.

16. Acosta also learned around that time—i.e. February/March 2018—that her school, Beulah Heights, did not have a designated PEA representative ("Association Representative" or "AR") in the building. Acosta volunteered to fill that position.

17. Soon thereafter, when it became apparent to Acosta and others that a strike was imminent, Acosta volunteered to be her school's "strike captain."

18. Before, and eventually during, the strike, "strike captains" relayed information from PEA to teachers and from teachers to PEA. Strike captains were an integral part of PEA's overall communication strategy regarding the strike.

19. During the build-up to the strike, PEA, with support from its parent organization, the Colorado Education Association ("CEA"), arranged for membership "blitz" meetings, where union leaders and staff members visited schools and made themselves available to answer questions about the possible strike and underlying labor dispute. Acosta attended at least one "blitz" meeting at Beulah Heights, which took place in the school's conference room, adjacent to Principal Jonathan Dehn's office. Acosta brought one of her colleagues, Madeline Clark, to the meeting.

20. During the "blitz" meeting Acosta and Clark attended, Principal Dehn was in the school office, and the door to the conference room where the meeting took place was open.

21. In or about April 2018, the School District's Board officially declined to accept the fact finder's recommendation, signaling a refusal to provide teachers with the marginal salary and benefit increases they sought.

22. Pueblo teachers, including Acosta, went on strike beginning May 7, 2018. The strike had the predictable effect of causing the School District to close all its schools and suspend

many of its operations. The event garnered substantial media attention in Pueblo and across much of the state.

23. Acosta picketed outside Beulah Heights the morning of May 7, 2018 and throughout the strike. She was the only probationary classroom teacher—i.e. kindergarten through 5th grade teacher—from Beulah Heights who picketed or otherwise supported the strike. Indeed, the other probationary classroom teachers, Madeline Clark (5th grade), Annie Busch (4th grade), and Heather Reardon (2nd grade) all crossed the picket line and reported to work during the strike.

24. Principal Dehn was aware of Acosta's participation in picketing. One day during the strike, while picketing outside the school, Acosta had a brief conversation with Dehn. Dehn approached Acosta, ostensibly to let her know one of her students had dropped off an assignment at the school.

25. The strike lasted the entire week of May 7, 2018. During the week, striking teachers, including Acosta, engaged in a number of strike-related activities. For example, they marched along Pueblo's River Walk; they picketed outside the School District's administration building; and they organized community rallies. All of these events received attention from the community and news media outlets.

26. Representatives of PEA and the School District returned to the bargaining table on Saturday, May 12, 2018. During the negotiations that day, PEA proposed an Amnesty Clause, which stated as follows:

The Board shall prohibit, and shall itself refrain from engaging in, any and all forms of reprisal, retaliation, harassment, or intimidation by any school district employee against any individual based upon that individual's support for or involvement in any form of Association activity, including, but not limited to, the work stoppage commencing May 7, 2018 and concluding upon execution of this Agreement. The Board further agrees not to withhold any salary, benefit, or any other form of compensation from any employee covered by this Agreement as a result of the aforementioned work stoppage, and to promptly compensate any employee covered by this Agreement for any salary, benefit, or other form of compensation already withheld[.]

27. The Amnesty Clause became part of a tentative agreement reached that day and was incorporated into the collective bargaining agreement after the tentative agreement was ratified by PEA's membership and approved by the Board of Education.

28. With the strike finally resolved, teachers returned to work on Monday, May 14, 2018.

29. When she returned to work after the strike, Acosta was unaware her job was in jeopardy. In fact, she assumed her position for the following school year (2018-19) was secure because, *inter alia*, her evaluator, Dean of Students Lisa Horton, assured her that her “effective” performance rating boded well for her return. Also, Acosta had enrolled—with Principal Dehn’s approval—in a training that would take place over the summer, and which she expected to implement in 2018-19 to the benefit of Beulah Heights students.

30. In addition, Acosta had no reason to believe that external factors, such as budget cuts or staff reductions, might jeopardize her position. Principal Dehn never informed his staff that Beulah Heights was facing possible staffing reductions.

31. Moreover, the time of year when the School District traditionally “non-renews” probationary teachers—March—had already come and gone. Largely, the School District conducts probationary non-renewals in March so that those teachers whose contracts are not renewed have ample time, during the height of hiring season, to find a new position for the following school year.

32. The first indication that Principal Dehn questioned Acosta’s role at Beulah Heights for the 2018-19 school year came the day after teachers returned to work—i.e. May 15, 2018. That day, Principal Dehn submitted a staffing plan to the School District’s human resources department. The staffing plan contemplated different assignments for Acosta—in one scenario, Dehn had Acosta teaching third grade, as she had done the previous two school years; in another scenario, Dehn penciled Acosta into a 5th grade position.

33. However, two days later—and just three days after teachers returned to work from the week-long strike—Principal Dehn decided to “non-renew” Acosta’s contract, effectively terminating her employment. Meanwhile, Dehn assigned non-striking probationary teachers Madeline Clark and Heather Reardon to teach fourth and fifth grades, respectively.

34. On or about May 22, 2018, the School Board officially non-renewed Acosta’s contract, terminating her employment effective at the end of the 2017-18 school year.

35. PEA, on Acosta’s behalf, filed a grievance challenging the non-renewal/termination as, *inter alia*, a violation of the Amnesty Clause. PEA and Acosta exhausted all available contractual remedies, including advisory arbitration, prior to Acosta initiating the instant lawsuit.

FIRST CLAIM FOR RELIEF **(Breach of Contract)**

36. The Plaintiff realleges and incorporates by reference paragraphs 1 through 35 of this Complaint and Jury Demand.

37. The collective bargaining agreement, including the Amnesty Clause, is a binding contract to which the Plaintiff is a third-party beneficiary.

38. The Defendants violated the Amnesty Clause of the collective bargaining agreement by, *inter alia*, non-renewing and terminating the Plaintiff's employment in retaliation for her participation in and support for the work stoppage commencing May 7, 2018.

39. The Plaintiff suffered damages as a result of the Defendants' violation, including lost wages and employment benefits.

SECOND CLAIM FOR RELIEF
(Violation of First Amendment to U.S. Constitution – Freedom of Association)

40. The Plaintiff realleges and incorporates by reference paragraphs 1 through 39 of this Complaint and Jury Demand.

41. The Defendant constitutes a "person" within the meaning of that term as used in 42 U.S.C. § 1983.

42. At all times relevant to this case, the Defendant acted "under color of state law" within the meaning of that term as used in 42 U.S.C. § 1983.

43. The Defendant retaliated against the Plaintiff for exercising her freedom of association for the purpose of engaging in speech, assembly, or petitioning for redress of grievances.

44. The Plaintiff's associational activities involved a matter of public concern.

45. The Defendant's actions violate the First Amendment to the U.S. Constitution and 42 U.S.C. § 1983.

THIRD CLAIM FOR RELIEF
(Violation of First Amendment to U.S. Constitution – Freedom of Speech)

46. The Plaintiff realleges and incorporates by reference paragraphs 1 through 45 of this Complaint and Jury Demand.

47. The Defendant constitutes a "person" within the meaning of that term as used in 42 U.S.C. § 1983.

48. At all times relevant to this case, the Defendant acted "under color of state law" within the meaning of that term as used in 42 U.S.C. § 1983.

49. The United States Constitution confers a First Amendment right to speak out on issues of public concern without fear of reprisal for having done so, and to be free of the chilling effects of such reprisals.

50. The Plaintiff engaged in activities protected by the freedom of speech clause of the First Amendment to the United States Constitution. These activities include, but are not limited to: speaking with co-workers and community members about the labor dispute and strike; providing information to colleagues and others about the labor dispute and strike; picketing; marching; demonstrating; and attending meetings and rallies.

51. The Defendant retaliated against the Plaintiff for exercising her freedom of speech by, for example, selecting her for non-renewal, terminating her employment, and refusing thereafter to re-employ her.

52. The Defendant's actions violate the First Amendment to the U.S. Constitution and 42 U.S.C. § 1983.

FOURTH CLAIM FOR RELIEF
(Violation of Article II, Section 10 of Colorado Constitution)

53. The Plaintiff realleges and incorporates by reference paragraphs 1 through 52 of this Complaint and Jury Demand.

54. Article II, Section 10 of the Colorado Constitution guarantees freedom of speech.

55. The Plaintiff exercised her rights under Article II, Section 10 by, for example, speaking with co-workers and community members about the labor dispute and strike; providing information to colleagues and others about the labor dispute and strike; picketing; marching; demonstrating; and attending meetings and rallies.

56. The Defendant retaliated against the Plaintiff for exercising her freedom of speech by, for example, selecting her for non-renewal, terminating her employment, and refusing thereafter to re-employ her.

57. The Defendant's actions violate Article II, Section 10 of the Colorado Constitution.

PRAYER FOR RELIEF

For the aforementioned reasons, the Plaintiff, Monica Acosta, respectfully requests that this Court enter orders directing the Defendant to:

First, reinstate Ms. Acosta's status as an employee and assign her to a teaching position for which she is qualified in the School District;

Second, pay Ms. Acosta the full amount of salary and employment benefits she lost from the time that she was non-renewed until the time of her reinstatement;

Third, pay Ms. Acosta compensatory damages, including damages for her emotional distress and for injury to her reputation;

Fourth, pay Ms. Acosta's attorney fees, expenses, and costs incurred in prosecuting this lawsuit;

Fifth, refrain from engaging in any form of retaliation or reprisal against Ms. Acosta for her participation in and support for the strike, as well as for her filing and pursuit of the instant lawsuit; and

Sixth, provide such other and further relief as this Court deems just and proper.

JURY DEMAND

The Plaintiff hereby demands that all issues in this action be tried to a jury.

Dated this 12th day of February 2020.

Respectfully submitted,

/s/ Erik G. Bradberry

Erik G. Bradberry, #49894

Attorney for Plaintiff

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